

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503668	VISTA MONTANA, A CALIFORNIA NON-PROFIT MUTUAL BENEFIT CORPORATION. VS WILDER	MOTION TO DISMISS AND FOR SUMMARY JUDGMENT

Tentative Ruling: No tentative ruling. Hearing is continued to December 1, 2026.

CCP §437c(a)(2) provides that “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (CCP §437c(a)(2).) “If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of the address is within the State of California”

Here, the notice period required was 86 days (81 days + 5 days for mailing). According to the proof of service filed on June 12, 2026, the motion was served *by mail* on 6/12/26. The hearing date is September 3, 2026. Thus, service of notice of the motion was required to be effected by June 9, 2026 for the September 3, 2026 hearing date. However, it was served three days late.

Notably, “[t]he court may *not* shorten the 81-day notice period without the parties’ consent. CCP § 437c(a) gives the court power to shorten time on *other* summary judgment time requirements, but *not* on the 81-day notice of hearing.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 10:80.5 citing *McMahon v. Sup. Ct. (Amer. Equity Ins. Co.)* (2003) 106 Cal.App.4th 112, 116.) “Where the moving party notices the hearing in less than the required time, *notice must begin anew*. The court *cannot* cure this defect by continuing the hearing for the missing number of days.” (*Id.* § 10.80.6 citing *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268.)

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508388	VIEIRA COSTA VS SUNDANCE II OWNERS ASSOCIATION	MOTION TO SET ASIDE ON CROSS-COMPLAINT OF SUNDANCE II OWNERS ASSOCIATION BY F.C. LANDSCAPE, INC

Tentative Ruling: C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons but defendant did not get actual notice of the action in time to defend. The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

Discretionary relief pursuant to CCP 473(b) is available “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P.

§473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

A review of the proof of service of the summons for Defendant F.C. Landscape indicated that service was done via substitute service of the person authorized to accept service, Francisco Corona. The documents were served on January 29, 2026 on a “Fernando Mejia, management” at 43216 Madison Street, Indio, CA 92201 at 11:36 a.m. Service was done by Registered Process Server Daniel Rolfe, and that the documents were mailed by Kendall Holmes to the same Indio address on 2.02.26. Service would be deemed completed 10 days later, on February 12, 2026. Evidence code §647 establishes a rebuttable presumption for a registered process server’s return. The request for entry of default was submitted to the court on March 18, 2026.

In his initial declaration dated May 22, 2026, Francisco Corona acknowledges that he is the Agent for service of process for Defendant F.C. Landscape as well as the CEO and CFO. Mr. Corona stated that the Madison Street address in Indio is the principal address of F.C. Landscape. Mr. Corona said that he was out of the country in Mexico between November 3, 2025 and February 7, 2026 and upon his arrival he did not return to work due to multiple deaths in the family, returning to the office sometime around the second week of March, 2026. While he was out of the country, Mr. Corona indicated no one else was checking the mail for F.C. Landscape. Mr. Corona did not state if anyone was checking mail after his return from Mexico in February.

Mr. Corona’s declaration fails to show mistake, inadvertence, surprise or excusable neglect. Failing to establish someone to check mail for a corporation for a period of over three months does not qualify as excusable. Adding to that failure is the additional month of failing to return to the office once back from Mexico. This court acknowledges that the several deaths in Mr. Corona’s wife’s family in a short period of time is an unfortunate and unforeseen circumstance, but failing to stop to check mail or go by the office, after having been away from 3 months, does not warrant setting aside of the default either under CCP 473.5 or 473(b), not to mention the omission of having someone to check the mail for the business during that 3 month timeframe. The supplemental declaration dated July 30, 2026 that Mr. Corona does not know a Fernando Mejia is insufficient to overcome the presumption afforded under E.C. 647. Additionally, Mr. Corona’s declaration fails to adequately address why he did not notice the mailed subpoena when he returned to the office around the second week of March, if the default was entered on March 18th.

Defendant F.C. Landscape’s Motion to Set Aside Default DENIED.

Case Management Conference confirmed for September 3, 2026.